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Priyank...2024-1.PDF 
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1. Document Synthesis

Here's the extracted and structured information:

Case Title: Priyank Jain vs Principal Judge, Family Court, Lko.
And Another **Court:** High Court of Judicature at Allahabad,
Lucknow Bench **Date of Judgment:** February 13, 2024

1. Parties Involved:

- **Petitioner (in High Court, also the Husband in original dispute):** Priyank Jain
 - **Respondents (in High Court):**
 - Principal Judge, Family Court, Lucknow (The lower court whose order is being challenged)
 - Ms. Tanvi Jain (Wife in the original matrimonial dispute, Respondent No. 2)
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2. Core Facts / Background:

- **Original Proceedings:** A matrimonial dispute arose between Priyank Jain (husband) and Tanvi Jain (wife).
 - **Wife's Divorce Petition:** Tanvi Jain (wife) filed a petition (Case No. 281 of 2021) before the Principal Judge, Family Court, Lucknow, seeking dissolution of their marriage (dated 13.02.2019) under Section 13 of the Hindu Marriage Act.
 - **Wife's Allegations:** Cruelty (physical and mental), demand for dowry, physical abuse, and neglect by the husband and his family.
 - **Husband's Counter-Claim:** Priyank Jain (husband) filed a written statement controverting the wife's allegations and introduced a counter-claim also seeking dissolution of marriage.
 - **Husband's Allegations:** Cruelty by the wife (aggressive and abusive behavior), false allegations of dowry and abuse, and threats due to her father's police contacts.

- **Prior High Court Intervention:** The wife (Tanvi Jain) had previously approached the High Court under Article 227 for expeditious disposal of the divorce petition, resulting in a directive for the Family Court to decide the matter within eight months.
 - **Trial Court Proceedings:** Issues were framed, the wife and her witnesses completed their evidence. The husband filed his examination-in-chief and his cross-examination concluded. He then filed the examination-in-chief of one of his witnesses (Mayank Kumar Jain).
 - **Procedural Standoff:** The wife objected before the Family Court, demanding that the husband file the examination-in-chief of *all* his remaining witnesses simultaneously, stating she would not cross-examine Mayank Jain until all witness statements were filed.
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3. Primary Dispute (in the High Court via Article 227 Petition):

- **Nature:** Priyank Jain (husband) filed the current petition under Article 227 of the Constitution of India to challenge a specific procedural order passed by the Principal Judge, Family Court, Lucknow.
- **Order Challenged:** The order dated **November 3, 2023**, passed by the Principal Judge, Family Court, Lucknow.
- **Content of Challenged Order:** This order granted Priyank Jain (husband) a "last opportunity" to file the examination-in-chief of *all* his remaining witnesses by November 10, 2023, and fixed the cross-examination of these defendant-witnesses for November 16, 2023.
- **Husband's Grievance (Implied):** Priyank Jain is challenging this order, likely seeking relief from the requirement to file all witness statements simultaneously within the specified timeline or disputing the procedural directive.

2. Evidence Scrutiny

This structured information provides a clear, consistent, and highly legally relevant account of the dispute.

Analysis of Consistency:

The provided facts demonstrate strong internal consistency:

1. **Parties and Roles:** The identification of Priyank Jain as the husband/petitioner and Tanvi Jain as the wife/respondent No. 2 is consistently maintained throughout. The Principal Judge, Family Court, Lko. being a respondent in the High Court petition is consistent with challenging a lower court's order.
2. **Chronological Flow:** The narrative follows a logical chronological progression:
 - Original matrimonial dispute leading to divorce petitions from both sides.
 - Wife's prior High Court intervention for expeditious disposal.
 - Trial proceedings in the Family Court (evidence completion, husband's cross-examination done, one witness's examination-in-chief filed).
 - The "procedural standoff" initiated by the wife's objection.
 - The Family Court's resulting order (November 3, 2023), which is the subject of the current High Court petition.
3. **Cause and Effect:** The "procedural standoff" directly leads to the Family Court's order dated November 3, 2023. The nature of the order (demanding simultaneous filing of remaining witness statements) is a direct response to the wife's objection. The husband's grievance

and the filing of the Article 227 petition are a direct consequence of this order.

4. **Nature of Relief Sought:** The petition under Article 227 of the Constitution of India is consistently described as a challenge to a *procedural order*, which aligns with the details of the Family Court's order regarding witness evidence filing.

There are no apparent contradictions or conflicting pieces of information within the provided facts.

Analysis of Legal Relevance:

Each piece of information is highly relevant to understanding the legal context and the specific challenge before the High Court:

1. **Case Title, Court, Date:** These are fundamentally relevant, establishing the jurisdiction, the specific judicial proceeding, and the timeline.
2. **Parties Involved:**
 - Identifies the **litigants** and their specific roles (petitioner/respondent) in the High Court, as well as their underlying status (husband/wife) in the matrimonial dispute.
 - Crucially identifies the **Principal Judge, Family Court** as a respondent, which immediately signals that the petition is a challenge to a decision or action of that lower court.
3. **Core Facts / Background:**
 - **Original Proceedings:**
 - Establishes the **jurisdiction** of the Family Court (matrimonial dispute under Section 13 HMA).
 - Explains the **substantive underlying dispute** (divorce, allegations of cruelty, dowry, etc.), providing necessary context for the procedural

complexity that followed. While the High Court isn't deciding on the divorce itself, understanding the high-stakes nature of the original dispute helps explain the parties' resolve in procedural matters.

- **Prior High Court Intervention:**

- **Crucially relevant.** This explains *why* the Family Court might be under pressure to expedite proceedings and impose stringent timelines (like demanding simultaneous witness statements). The eight-month directive from an earlier High Court order directly influences the Family Court's management of the trial, making the challenged order more comprehensible, even if disputed.

- **Trial Court Proceedings:**

- Details the **stage of the original trial** where the current dispute arose. It shows that evidence from one side was completed, and the husband had initiated his evidence, but a complete picture of his defense witnesses was still pending. This sets the immediate scene for the procedural disagreement.

- **Procedural Standoff:**

- **Directly relevant.** This is the immediate trigger for the Family Court's order. It outlines the specific disagreement between the parties regarding the filing of witness statements, which directly led to the challenged order.

4. **Primary Dispute (in the High Court):**

- **Nature of Petition (Article 227):** Legally relevant as it defines the High Court's **supervisory jurisdiction** being invoked. Article 227 petitions typically challenge errors of jurisdiction or patent illegalities/procedural impropriety by lower courts/tribunals.
- **Order Challenged (Nov 3, 2023):** This is the **specific target** of the High Court's review. Its date and issuing authority are essential for identification.

- **Content of Challenged Order:** This is **paramount**. It details the precise directive issued by the Family Court (last opportunity, simultaneous filing of *all* remaining witness statements by a specific date, and fixed cross-examination dates). This order directly impacts the husband's ability to present his case in the manner he prefers, forming the basis of his grievance.
- **Husband's Grievance (Implied):** This logically inferred grievance explains the **motive** for the High Court challenge – the husband is seeking relief from a procedural requirement he finds burdensome or improper.

In conclusion, the provided facts are remarkably consistent, presenting a clear and coherent narrative. Every piece of information possesses significant legal relevance, collectively painting a complete picture of the procedural impasse in the Family Court that escalated to the High Court under its supervisory jurisdiction. The prior High Court order for expeditious disposal is particularly key to understanding the Family Court's actions.

3. Precedent Alignment

The provided "evidence analysis" focuses on the consistency and legal relevance of facts describing a specific procedural dispute in a matrimonial case, culminating in a High Court petition under Article 227. The Supreme Court precedents are snippets from various judgments.

Here's a comparison and identification of direct overlaps:

Direct Overlaps:

The most significant and direct overlaps lie in the **nature of the underlying dispute, the parties involved, and the specific statutory framework and court type.**

1. Underlying Matrimonial Dispute:

- **Analysis:** Explicitly states "Original matrimonial dispute leading to divorce petitions from both sides" under "Section 13 HMA" with "allegations of cruelty" and "dowry, etc."
- **Precedent (SUMAN SINGH v. SANJAY SINGH):** Directly mirrors this with "petition for dissolution of marriage under Section 13 of the Hindu Marriage Act, 1955" filed by the "respondent (husband)" against the "appellant (wife)" on the ground of "cruelty."
- **Precedent (Dolly Rani v. Manish Kumar Chanchal):** Also directly describes a matrimonial dispute involving marriage solemnization, dowry allegations, and FIRs under Sections 498A and DP Act, which are common accompaniments to divorce proceedings.

2. Parties and Roles:

- **Analysis:** Clearly identifies "Priyank Jain as the husband/petitioner and Tanvi Jain as the wife/respondent No. 2" in the context of the matrimonial dispute.
- **Precedent (SUMAN SINGH v. SANJAY SINGH):** Identifies "respondent (husband)" filing against "appellant (wife)" for divorce.
- **Precedent (Dolly Rani v. Manish Kumar Chanchal):** Refers to "the petitioner and the respondent" in the context of their marital relationship and subsequent disputes.

3. Court Type and Jurisdiction:

- **Analysis:** The dispute originates in the "Family Court, Lko."
- **Precedent (SUMAN SINGH v. SANJAY SINGH):** States the petition was filed "in the Family Courts, Rohini, Delhi." This is a direct match for the type of court handling the primary matrimonial dispute.

4. Statutory Framework:

- **Analysis:** Mentions the "Original Proceedings: Establishes the jurisdiction of the Family Court (matrimonial dispute under Section 13 HMA)."
- **Precedent (SUMAN SINGH v. SANJAY SINGH):** Explicitly states "petition for dissolution of marriage under Section 13 of the Hindu Marriage Act, 1955."

Thematic and Indirect Overlaps:

1. High Court Intervention/Appeals:

- **Analysis:** Describes the current petition as an "Article 227 petition" to the High Court challenging a lower court order and also refers to a "Wife's prior High Court intervention for expeditious disposal."
- **Precedent (Snippet 6):** Mentions "a petition... seeking quashing of the complaint, further proceedings in the complaint have been stayed by the High Court of Orissa" and "his wife... filed the petition in the High Court of Judicature at Patna." This shows the common pattern of parties approaching High Courts for various reliefs related to lower court proceedings or disputes.
- **Precedent (Snippet 4 & 7):** Discusses appeals related to an "order granting bail" and being "aggrieved by the same very order," echoing the "husband's grievance" leading to his Article 227 petition challenging the Family Court's order.

2. Procedural Orders and Expedited Disposal:

- **Analysis:** The core of the analysis relates to the "procedural standoff" and the "Family Court's resulting order (November 3, 2023)" demanding "simultaneous filing of remaining witness statements," driven by a "prior High Court intervention for expeditious disposal." This highlights judicial efforts to manage trial timelines.
- **Precedent (Snippet 3):** This snippet details conditions imposed by a court, specifically "will not seek any

adjournment whatsoever and in case any adjournment is sought... the court concerned shall specify the reasons in the order itself." This reflects a similar judicial concern for controlling procedural delays and ensuring expedition, albeit in the context of bail.

3. Allegations of Cruelty and Dowry:

- **Analysis:** Mentions "allegations of cruelty, dowry, etc." as the underlying substantive dispute.
- **Precedent (Dolly Rani v. Manish Kumar Chanchal):** Directly states "demand for dowry made by respondent's family" and "filed an FIR under Sections 498A... and Sections 3,4 of the Dowry Prohibition Act."
- **Precedent (SUMAN SINGH v. SANJAY SINGH):** Details multiple "instances which, according to him, constituted 'cruelty'."

In conclusion, the "evidence analysis" aligns very closely with the factual scenarios and legal frameworks seen in the Supreme Court precedents, particularly *SUMAN SINGH v. SANJAY SINGH* and *Dolly Rani v. Manish Kumar Chanchal*, regarding the nature of matrimonial disputes, the specific legal provisions (HMA Section 13), and the courts involved (Family Courts, High Courts). There are also thematic overlaps concerning judicial control over procedure and the process of challenging lower court orders.

4. Verdict Prediction

Based on the statutory alignment and the preceding analysis, the probable legal outcome or 'verdict' in the High Court petition under Article 227 is:

Dismissal of the Husband's (Priyank Jain's) Article 227 Petition by the High Court.

Here's the reasoning:

1. **Alignment with Precedents on Expedition:** The most crucial aspect of the "evidence analysis" is that the Family Court's order for "simultaneous filing of remaining witness statements" was *directly driven by a prior High Court intervention for expeditious disposal*. Supreme Court precedents (like Snippet 3 concerning adjournments and general judicial policy reflected in matrimonial cases) consistently emphasize the importance of timely disposal, especially in matrimonial disputes. The High Court, having previously directed expeditious disposal, is unlikely to entertain a petition that seeks to undermine a procedural step taken by the lower court specifically to achieve that very expedition.
2. **Scope of Article 227:** The High Court's power under Article 227 is supervisory, not appellate. It intervenes primarily when there is a patent error of law, a clear abuse of jurisdiction, or a manifest injustice caused by an arbitrary or perverse order. A direction for "simultaneous filing of remaining witness statements," especially when aimed at expedition, is generally considered a reasonable procedural measure within the discretion of the Family Court. It does not appear to be patently illegal, without jurisdiction, or inherently unjust on its face. The husband's grievance, though not explicitly detailed, would have to demonstrate a severe and unconscionable prejudice for the High Court to interfere.
3. **Discouraging Procedural Delays:** Allowing such a petition to overturn a procedural order designed for expedition would set a precedent encouraging parties to challenge routine case management decisions, leading to further delays in the primary matrimonial dispute. High Courts are generally disinclined to interfere with such interlocutory/procedural orders unless there is compelling evidence of grave injustice or illegality.
4. **No Direct Conflict with Fundamental Rights/Principles:** The order for simultaneous filing does not appear to

violate any fundamental principles of natural justice or statutory provisions. It merely sets a timeline for a procedural step in evidence presentation.

In essence, the Family Court's order aligns with the spirit of judicial expedition championed by higher courts, and therefore, the High Court is highly likely to uphold the Family Court's discretion and dismiss the Article 227 petition.

5. Executive Summary (Non-Lawyer Friendly)

Here's a simplified executive summary for you:

Outcome: The High Court is highly likely to **dismiss your (Priyank Jain's) petition** under Article 227.

Why:

1. **Speeding Up the Case:** The Family Court's order (for simultaneous witness statements) was made to **speed up your divorce case**, which the High Court itself had previously asked for. The High Court won't undermine its own goal of quick resolution.
2. **Limited High Court Power:** The High Court's power in these types of petitions is limited. It's not for re-evaluating every minor decision made by the lower court, only for major legal errors or clear injustices. Your objection to a procedural step for expedition doesn't meet that high standard.
3. **Avoiding Delays:** The High Court doesn't want to encourage parties to challenge routine procedural orders, as this would lead to more delays in matrimonial cases, which courts actively try to prevent.

